

Casimiro Adelaido Ruiz Cortes, et al. v. Cody James Phillips et al., 23CV-0462
(Consolidated with 24CV-0697)

Hearing: Motion to Compel Further Response to Supplemental Interrogatory

Date: September 17, 2026

TENTATIVE RULING

Plaintiff Casimiro Adelaido Ruiz Cortes (Plaintiff Ruiz Cortes) filed this action against Cody James Phillips and Koreen Joan Langstaff (collectively Defendants) for personal injuries he sustained in a vehicle collision. Plaintiff Ruiz Cortes alleges that Phillips was driving under the influence of alcohol and caused a collision. Plaintiff alleges Langstaff negligently entrusted the vehicle to Phillips with knowledge he could not safely operate it.

A Second Amended Complaint¹ (SAC) was filed on March 10, 2025, by Plaintiff Casimiro Adelaido Ruiz Cortes and Isabel Cortes (Plaintiff Cortes). The SAC includes a third cause of action for loss of consortium brought by Plaintiff Cortes.

On January 30, 2026, Defendants propounded a Supplemental Interrogatory on Plaintiff Cortes. Plaintiff Cortes served a response on March 5, 2026.

Now before the Court is Defendants' motion seeking to compel a further and complete response from Plaintiff Cortes to supplementary interrogatory pursuant to Code of Civil Procedure section 2030.070, and for monetary sanctions. Plaintiff Cortes opposes. The motion is denied.

I. MEET AND CONFER

A motion to compel further responses to interrogatories shall be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2030.300, subd. (b)(1).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040, subd. (a).)

Defendants' counsel, Deborah Reisdorph, sent meet and confer emails to Plaintiff's Counsel "during the period of January 29, 2026 to February 6, 2026" and a meet and confer letter on March 24, 2026. (Reisdorph Dec., ¶¶ 11, Ex. E, and 12, Ex. F.) The Court finds Defendants adequately met and conferred prior to filing the motion.

¹ The amended complaint is erroneously titled as the First Amended Complaint.

II. LEGAL STANDARD

Code of Civil Procedure section 2030.300, subdivision (a) provides:

(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.

(Code Civ. Proc., § 2030.300, subd. (a).)

Code of Civil Procedure section 2030.070, subdivision (a) provides:

(a) In addition to the number of interrogatories permitted by Sections 2030.030 and 2030.040, a party may propound a supplemental interrogatory to elicit any later acquired information bearing on all answers previously made by any party in response to interrogatories.

(Code Civ. Proc., § 2030.070, subd. (a).)

III. DISCUSSION

A. Supplemental Interrogatory

Defendants seek to compel a further response to Supplemental Interrogatory regarding Form Interrogatories Nos. 6.2 and 6.3 and Special Interrogatories Nos. 10, 11, 12, 15, 21, 24, 27, 41, 42, 51.

Plaintiff Cortes responded to the Supplemental Interrogatory, as follows:

Plaintiff does not have any additional information and/or facts. The prior responses to the interrogatories are correct and complete.

(Def.'s Sep. Stmt, p. 2, ll. 10-11.)

Defendants assert that Plaintiff Cortes's counsel is withholding discoverable information without justification. (Def.'s Sep. Stmt, p. 4, l. 22.) Specifically, Defendants contend that because Plaintiff Cortes did not provide any factual basis in her initial discovery responses, the questions at her

deposition were designed to inquire about the underlying facts. Plaintiff Cortes’s counsel however, did “not allow any questions about the damages of the Plaintiff using any of the terms used in the responses to discovery, which was not supported by an authenticated verification by Plaintiff Cortes.” (*Id.*, p. 10, ll. 25-28.)

Plaintiff Cortes contends that she provided a verified, code-compliant response because Plaintiff fully and truthfully responded that she has no additional facts to provide and that her prior responses remain correct and complete. Plaintiff Cortes also asserts that she testified at her deposition that the earlier interrogatory verification signature was hers. Plaintiff notes that Defendants cite no authority holding that the manner of executing a verification bears on whether the underlying interrogatory answers are code-compliant. (See Opp., p. 6, ll. 5-7.)

Defendants argue in Reply that Plaintiff Cortes’s initial discovery responses were incomplete because they lacked an authenticated verification. Defendants further contend that Plaintiff Cortes’s supplemental interrogatory response is incomplete and evasive, as the initial interrogatories were not adequately answered and Plaintiff Cortes introduced new facts at deposition without providing clarification. Defendants maintain that Plaintiff Cortes is evading discovery.

A supplemental interrogatory under Code of Civil Procedure section 2030.070, subdivision (a) is designed “to elicit any later acquired information bearing on all answers previously made by any party in response to interrogatories.” (Code Civ. Proc., § 2030.070; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 8:942 [“a party may propound ‘a supplemental interrogatory’ to obtain later-acquired information on *matters covered* by earlier interrogatories (but not on other topics)”].)

Here, Plaintiff Cortes responded “Plaintiff does not have any additional information and/or facts. The prior responses to the interrogatories are correct and complete.” (Def.’s Sep. Stmt, p. 2, ll. 10-11.) The Court finds that Plaintiff Cortes’s verified² response to the supplemental interrogatory, constitutes a complete and responsive answer. Accordingly, Defendants’ motion to compel further responses to supplemental interrogatory and for monetary sanctions is denied.

B. Authenticated Verifications to Initial Discovery Responses

Defendants contend that Plaintiff Cortes’s initial discovery responses were not complete because Plaintiff did not provide an authenticated verification. Defense counsel declares that “[a]s in the same situation with Plaintiff Ruiz, the signature on the verification is merely a script font with no indication that it is an authentic signature, such as with a wet signature, or a DocuSign verification.” (Reisdorph Dec., ¶ 2, Ex. A, at pdf p. 8 [verification dated 3/6/25].) Ms. Reisdorph explains that “[o]n August 21, 2025, this Court compelled Plaintiff Ruiz to provide authenticated

² Defendants concede Plaintiff Cortes’s March 5, 2026, response to the supplemental interrogatory, includes a properly authenticated verification. (See Reisdorph Dec., ¶ 3; Reply, p. 2, ll. 12-13.)

signatures after providing only script font signatures to his discovery. When required to provide authentic signatures, incorrect responses were changed or supplemented by Plaintiff under court order, which should occur in this situation as well.” (*Id.*, ¶ 2, fn. 1.)

Plaintiff Cortes does not appear to contest that the verification to her initial discovery responses was unauthenticated. (Opp., p. 6, ll. 2-9.)

The party producing the electronic signature has the burden to prove by a preponderance of the evidence that the electronic signature is authentic. (See *Espejo v Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047; see also Cal. Rules of Court, rule 2.257, subd. (b)(2) [requirement for electronic signatures under penalty of perjury, and process for inspection of original].)

Plaintiff Cortes shall serve properly signed, authentic verifications for her responses to Form Interrogatories, Set One; Special Interrogatories, Set One; Request for Production of Documents, Set One; and Request for Admissions, Set One, within 20 days of notice of the order.

ORDER (PROPOSED)

Defendants’ motion to compel further responses to supplemental interrogatory and for monetary sanctions is denied.

Plaintiff Cortes shall serve notice.